

the Notice of Motion. The plaintiff successfully alleges fraud, which is one of the statutory bases for punitive / exemplary damages. (Civ. Code, § 3294 (a) [“where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant”].)

### **3. Attorneys’ Fees**

The motion is granted with respect to the attorneys’ fees allegations listed in the Notice of Motion. There is no contract here and no successfully asserted statutory claim here that would entitle plaintiff to his attorneys’ fees.

**3. 9:00 AM CASE NUMBER: C22-02691**  
**CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD**  
**HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT**  
**FILED BY: MAMPALAM, THOMAS J, MD**  
**\*TENTATIVE RULING:\***

Please see Line 2.

**4. 9:00 AM CASE NUMBER: C23-02087**  
**CASE NAME: JOHN BROSNAN VS. GEICO INDEMNITY COMPANY**  
**\*HEARING ON MOTION IN RE: RENTAL VEHICLE**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Before the Court is a motion by plaintiff John Brosnan for a rental vehicle. For the reasons set forth, the motion is **denied**.

#### **Background**

Plaintiff filed his complaint initiating this action on August 22, 2023. His complaint alleged his claims arose out of a motor vehicle accident that allegedly occurred on August 3, 2022 in which the other vehicle involved in the accident was insured by defendant Geico Indemnity Company. (Compl. 1st and 2nd C/As.) Geico demurred to the Complaint on the ground Plaintiff had no direct claim against Geico. The Court sustained Geico's unopposed demurrer without leave to amend. (2/23/2024 Order.) On October 21, 2024, defendant Garcia filed a demurrer to the Complaint which was set for hearing on February 21, 2025. The Court sustained Garcia's demurrer without leave to amend on statute of limitations grounds. (Min. Order 2/21/2025.)

On November 4, 2025, Plaintiff filed the current motion for a rental vehicle. Garcia filed an opposition to the motion.

#### **Legal Authority and Analysis**

Garcia argues the motion should be denied in part because demurrers to Plaintiff's complaint were sustained as to both named defendants. Garcia's recent *ex parte* application for an order dismissing the action under Code of Civil Procedure section 581 was denied on the grounds stated in the order.

(2/6/2026 Order.) The action remains pending.

As to the specific motion before the Court, the motion consists of a single page of substantive allegations and argument, unsupported by any legal authority or evidence, pursuant to which Plaintiff asks the Court to order defendant Garcia to provide him a rental vehicle until his car is repaired. A motion is required to be supported, at a minimum, by a memorandum of points and authorities providing the Court with the legal authority on which it is brought and the legal basis on which the relief sought can be granted. (Cal. R. Ct., Rule 3.1112(a) and (b), and Rule 3.1113(a) ["A party filing a motion . . . must serve and file a supporting memorandum."] and (b) ["The memorandum must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases, and textbooks cited in support of the position advanced."].)

The motion is not supported by a Rule-compliant memorandum, legal authority or evidence. Plaintiff is not excused from compliance with applicable law, procedures, and rules merely because he is a self-represented litigant. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284-1285.) Plaintiff has presented no legal or factual basis for the Court to grant the substantive relief requested by showing that either defendant is legally obligated to provide Plaintiff a rental vehicle. For all these reasons, the motion is **denied**.

**5. 9:00 AM CASE NUMBER: C24-01630**

**CASE NAME: ROBERT MILLER VS. SOPHIE HAN**

**HEARING ON SUMMARY MOTION JUDGMENT**

**FILED BY: MILLER, ROBERT A.**

**\*TENTATIVE RULING:\***

Before the Court is a motion for summary judgment, or in the alternative, summary adjudication, filed by plaintiff Richard Miller. For the reasons set forth, the Court rules as follows: (a) motion for summary judgment - **denied**; (b) motion for summary adjudication as to the First Cause of Action for Breach of Contract is – **granted**, and Plaintiff shall be granted judgment in the amount of \$132,282.32 plus attorney's fees and pre-judgment interest thereon at the rate of 10% per annum from April 18, 2022 until the date of entry of judgment; and (c) motion for summary adjudication as to the Second Cause of Action for Common Count: Account Stated - **denied**.

**Background**

Plaintiff Richard Miller alleges he is an attorney who represented defendant Sophie Han pursuant to a written Agreement for Legal Services ("Agreement"). (Compl. 1st C/A ¶¶ BC-1 and BC-2 and Exh. A.) The Agreement provides for Miller to represent Han and SS Dreambuilders, LLC in two civil actions identified in the Agreement. (Compl. Exh. A.) He alleges that on or about April 18, 2022, Han breached her agreement with Miller by failing to pay \$132,282.32 owed for his legal services. (Compl. ¶¶ 9, 10 and 1st C/A BC-4.) Miller alleges pre-litigation he served Han with a Notice of Client's Right to Fee Arbitration, a copy of which is also attached to the Complaint. (Compl. ¶ 9.) The Complaint alleges a cause of action for breach of contract (1st C/A) and a common count for account stated (2nd C/A). Miller seeks damages in the amount of \$132,282.32, plus pre-judgment interest at the rate of 10% and attorneys' fees and costs incurred in this action.